

24CHCV01241 24CHCV01241

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Case Number: 24CHCV01241 Hearing Date: July 6, 2026 Dept: F49

Dept. F49

Date: 7/6/26

Case Name: Jaclyn De La Mora vs Kara Ellen Savely;
Roland Savely; Leigh Madonna Requena; Anthony Requena; and Does 1-25

Case No. 24CHCV01241

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 6, 2025

MOTION FOR
PROTECTIVE ORDER; REQUEST FOR SANCTIONS

Los Angeles Superior
Court Case No. 24CHCV01241

Motion filed: 6/8/26

MOVING PARTY: Plaintiff Jaclyn De La Mora

RESPONDING PARTY: Defendants Kara Ellen Savely and

Roland Savely

NOTICE: OK

RELIEF REQUESTED: An order from this Court quashing or limiting subpoenas for Plaintiff's medical and billing records issued to Kaiser Permanente and awarding sanctions in the amount of \$3,060.00.

TENTATIVE RULING: The motion is GRANTED. The request for sanctions is GRANTED IN PART.

BACKGROUND

This action arises from personal injuries sustained by Plaintiff Jaclyn De La Mora in a motor vehicle accident allegedly caused by Defendants. On April 5, 2024, Plaintiff filed the Complaint against Defendants Kara Ellen Savely, Roland Savely, Leigh Madonna Requena, Anthony Requena, and Does 1 through 25, alleging a single cause of action for motor vehicle negligence. On August 30, 2024, the Savelys filed an Answer. On June 26, 2025, the Requenas filed an Answer.

On June 30, 2025, the Requenas filed a Cross-Complaint against the Savelys and Roes 1 through 25, alleging apportionment of fault, indemnification, and declaratory relief. On July 2, 2025, the Savelys concurrently filed an Answer to the Cross-Complaint and a Cross-Complaint against the Requenas and Roes 1 through 25, seeking implied and equitable indemnity, contribution, and declaratory relief.

On June 8, 2026, Plaintiff filed the instant Motion for Protective Order (the "Motion"). On June 30, 2026, the Savelys filed an Opposition. On July 1, 2026, Plaintiff filed a Reply.

ANALYSIS

"If a subpoena requires the ... production of books, documents, electronically stored information, or other things ... at the taking of a deposition, the court, upon motion reasonably made by [a party], ... may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare,

including protective orders.” (Code Civ. Proc., § 1987.1, subd. (a).) Persons who may bring a motion pursuant to Code of Civil Procedure section 1987.1 include “[a] consumer described in Section 1985.3.” (Id., subd. (b)(3).)

A “consumer” includes “any individual ... [who] has transacted business with, or has used the services of a subpoenaed witness. (Code Civ. Proc., § 1985.3, subd. (a)(2).) “Any consumer whose personal records are sought by a subpoena duces tecum and who is a party to the civil action in which this subpoena duces tecum is served may, prior to the date for production, bring a motion under Section 1987.1 to quash or modify the subpoena duces tecum.” (Code Civ. Proc., § 1985.3, subd. (g).)

“The court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.”² (Code Civ. Proc., § 2017.020, subd. (a).) “The court shall make this determination pursuant to a motion for protective order by a party or other affected person.” (Ibid.)

A.
Preliminary Considerations

(1)
Request for Continuance

As a preliminary matter, the Savelys argue that the Motion was not properly served because it was served only on their attorney, Jeffrey Lerman (“Lerman”) and not on his assistant, resulting in the Motion not being properly calendared. (Opp’n, at p. 6.)

Pursuant to Code of Civil Procedure section 1010, “[n]otices and other papers may be served upon the party or attorney.” Where a party to an action is represented by counsel, “the service of papers, when required, must be upon the attorney instead of the party, except service of subpoenas, of writs, and other process issued in the suit, and of papers to bring the party into contempt.” (Code Civ. Proc., § 1015.)

Plaintiff’s Proof of Service indicates that the Motion was served on Lerman via email on June 5, 2026. (Mot., Proof of Service.) The Savelys provide no authority requiring service on their

attorney's assistant. The Court accordingly finds that this service complied with statutory requirements.

(2)

Legal Basis for Motion

The Savelys further contend that the Motion is improper because it is made under Code of Civil Procedure section 2025.420. (Opp'n, at p. 4.) The Savelys assert that the subpoenas issued to Kaiser were issued independently of a deposition and that Plaintiff's remedy is accordingly not a protective order, but to move to quash or modify the subpoenas pursuant to section 1987.1, which Plaintiff has not done. (Ibid.)

While it is true that section 2025.420 concerns subpoenas for the production of documents at oral deposition and no deposition was noticed here, the Motion raises Code of Civil Procedure sections 1987.1 and 2017.020 as alternate grounds for relief. (Mot., at pp. 6-7.) The relief Plaintiff requests is that the Court either quash the subpoenas or enter an order modifying them to limit production to Plaintiff's specific injuries. (Mot., at p. 4.) The Savelys do not dispute that a limiting order is available pursuant to a section 2017.020 motion for protective order. The Court accordingly finds that Plaintiff requests appropriate relief under sections 1987.1 and 2017.020.

B.

Meet and Confer

A motion for protective order pursuant to Code of Civil Procedure section 2017.020 must be accompanied by a meet and confer declaration. "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ. Proc., § 2016.040, subd. (a).)

Plaintiff's counsel attests that, on May 19, 2026, the day after he received copies of the subpoenas for Plaintiff's medical records, he emailed a meet and confer letter to Lerman concerning the overbreadth of the requests. (Haddad Decl., ¶¶ 2-3.) After not receiving a response to the letter, Plaintiff's counsel called Lerman and left a voicemail detailing Plaintiff's objection to the subpoenas. (Id., ¶ 5.) Having

received no response to the voicemail and with an impending production date of June 12, 2026, Plaintiff filed the Motion. (Id., ¶¶ 5-6.)

Given the privacy interests at stake (see *infra*) and the abbreviated timeline for Kaiser's compliance with the deposition subpoenas, the Court finds the foregoing meet and confer effort satisfactory.

C.

Motion for Quash or Modify Subpoenas

The Savelys issued two subpoenas to Kaiser Permanente's medical and billing divisions on May 14, 2026. (Haddad Decl., ¶ 2, Exh. A.) The subpoenas request "[a]ny and all medical documents, papers and digital records, billing, pertaining to the care, treatment and examination of Jaclyn De La Mora, including, but not limited to all office, emergency room, inpatient and outpatient charts and records either hard copy or electronic and/or faxed, from April 14, 2014." (Id., Exh. A.)

Plaintiff contends that the subpoenas are overbroad and violate Plaintiff's right to medical privacy. Plaintiff seeks an order limiting the production of her medical records to the following injuries alleged by Plaintiff: (1) cervical spine sprain/strain; (2) thoracic spine strain/sprain; (3) lumbar spine sprain/strain; (4) right shoulder sprain/strain; (5) right knee sprain/strain; and (6) right hip pain (interstitial tear in mid-posterior part traverse acetabular ligament). (Mot., at p. 4.)

(1)

Considerations Balance in Favor of
Preserving Plaintiff's Privacy Interest

The California Constitution recognizes that individuals have an inalienable right to privacy. (Cal. Const., Art. 1, § 1.) That right, however, must be balanced against a litigant's broad right to discovery of non-privileged matters that are relevant to the subject matter of the litigation. (See Code Civ. Proc., § 2017.010.)

"A party asserting a privacy interest must establish a legally protected privacy interest, an objectively

reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citation.]” (Williams v. Superior Court (2017) 3 Cal.5th 531, 552.) Once the party asserting privacy meets these threshold requirements, the Court must balance “the legitimate and countervailing interests” served by disclosure against feasible alternatives or protective measures that would serve the same interests. (Ibid.)

While Courts recognize that a plaintiff may implicitly waive, in part, the right to privacy by filing a lawsuit, the scope of waiver must be narrowly tailored to minimize the privacy intrusion and the information sought must be directly relevant to the litigation. (Britt v. Superior Court (1978) 20 Cal.3d 844, 858; Davis v. Superior Court (1992) 7 Cal.App.4th 1008, 1014.)

A patient has an essential privacy interest in his or her personal medical information. (Hill v. National Collegiate Athletic Assn. (1994) 7 Cal.4th 1, 41 [recognizing an interest in “limiting disclosure of confidential information about the bodily condition” to avoid embarrassment].) While Plaintiff’s initiation of this action operates as a partial waiver, the waiver extends only to information that is directly relevant to the action. (Britt, supra, 20 Cal.4th, at p. 858.)

Here, the subpoenas request “any and all” medical and billing records from April 14, 2014 until the present. The Court finds a request for 12 years of unrestricted medical and medical billing information to be a serious intrusion. Although Plaintiff concedes that evidence of preexisting conditions may be relevant to damages, Plaintiff argues that unlimited access to 12 years of records would encompass treatment involving sensitive matters wholly unrelated to the present claims. (Mot., at p. 7.) The Court agrees that the request is not sufficiently tailored to minimize the intrusion into Plaintiff’s medical and billing history.

In Opposition, the Savelys argue that limiting the subpoenas to the specific body parts requested by Plaintiff would exclude relevant records of sympathetic injuries. (Opp’n, at p. 5.) The Savelys contend that one injury can significantly impact a person’s entire musculoskeletal system. (Ibid.) This contention, however, without any showing of direct relevance, is not enough to justify wholesale disclosure of records. (Davis, supra, 7 Cal.App.4th, at p. 1017 [“Mere speculation as to the possibility that some portion of the records might be

relevant to some substantive issue does not suffice."].)

Based on the foregoing, the Court
GRANTS the Motion.

D.

Monetary Sanctions

Plaintiff

moves for sanctions pursuant to Code of Civil Procedure sections 2017.020 and 2025.420. (Mot., at p. 11.) Code of Civil Procedure section 2025.420, subdivision (h) permits sanctions against a party who unsuccessfully opposes a motion for protective order in the context of an oral deposition. There is no deposition notice at issue in the present Motion, and section 2025.420 is accordingly inapplicable.

Pursuant

to section 2017.020, subdivision (b), "the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order, unless it finds that the one subject to the sanctions acted with substantial justification or that other circumstances make the imposition of the sanctions unjust."

Plaintiff

requests sanctions against the Savelys and their counsel of record in the amount of \$3,060.00, calculated as six hours expended on research, meet and confer efforts, preparing the motion and supporting papers, and attending the hearing, at an hourly rate of \$500, plus a \$60 filing fee. (Haddad Decl., ¶ 7.)

While

the Opposition avers that the Savelys' counsel was on vacation and without email service from June 5, 2026 until June 15, 2026, hinting that a more thorough opposing argument would have been presented had he had more time to prepare, (Opp'n, at p. 6), the Court does not find that this circumstance justifies the service of a facially overbroad and intrusive deposition subpoena. Sanctions are accordingly warranted.

The

Court finds Plaintiff's counsel's hourly rate to be reasonable. However, given that the Motion was a straightforward motion to limit the scope of the subpoenas at issue, the Court determines the total time reasonably expended in connection with the Motion to be three hours. At an hourly rate of \$500, the Court finds that the total reasonable attorney fees in connection with the Motion are \$1,560.00 (3 hours x \$500, plus the \$60 filing fee).

The request for monetary sanctions is thus GRANTED IN PART.

CONCLUSION

The Court GRANTS Plaintiff Jaclyn De La Mora's Motion for Protective Order. The depositions subpoenas issued to Kaiser Permanente are limited to the following conditions: (1) cervical spine sprain/strain; (2) thoracic spine strain/sprain; (3) lumbar spine sprain/strain; (4) right shoulder sprain/strain; (5) right knee sprain/strain; and (6) right hip pain (interstitial tear in mid-posterior part traverse acetabular ligament).

Plaintiff's request for sanctions is GRANTED IN PART. Defendants Kara Ellen Savely and Roland Savely and their attorney of record are ordered to pay \$1,560.00, jointly and severally, to Plaintiff's counsel within 30 days.

Moving party to give notice.